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IN THE FOURTH JUDICIAL DISTRICT COURT, PROVO DEPARTMENT  
IN AND FOR THE COUNTY OF UTAH, STATE OF UTAH

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|--------------------------------------------------------------------------------------------|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| STATE OF UTAH,<br><br>Plaintiff,<br><br>vs.<br><br>TYLER JAMES ROBINSON,<br><br>Defendant. | <b>DEFENDANT TYLER JAMES<br/>ROBINSON'S REPLY TO STATE'S<br/>OPPOSITION TO DEFENDANT'S<br/>MOTION TO CLASSIFY MOTION TO<br/>EXCLUDE STILL PHOTOGRAPHERS, TV<br/>CAMERAS AND MICROPHONES FROM<br/>THE COURTROOM AS PRIVATE</b><br><br>Case No. 251403576<br><br>Honorable Tony F. Graf, Jr. |
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Defendant, Tyler James Robinson, by and through counsel of record, hereby files this reply to the *State's Opposition to Defendant's Motion to Classify Motion to Exclude Still Photographers, TV Cameras and Microphones from the Courtroom as Private* (Dkt. 346), support of his *Motion to Classify Motion to Exclude Still Photographers, TV Cameras and Microphones from the Courtroom as Private*, filed January 16, 2026. *See* Dkt. 310. Mr. Robinson also hereby incorporates by reference his prior reply in support of the motion to classify entitled *Defendant Tyler James Robinson's Reply in Support of Motion to Classify Motion to Exclude*. *See* Dkt. 344.

“When deciding whether to ... classify a court record as a private... record, or to redact information from the record, the court may consider any relevant factor, interest, or policy, including but not limited to the interests described in Rule 4-202.” Utah R. Jud. Admin. 4-202.04(6). As this Court has previously articulated, in ruling on this motion, the Court must:

- (A) make findings and conclusions about specific records;
- (B) identify and balance the interests favoring opening and closing the record;  
and
- (C) if the record is ordered closed, determine there are no reasonable alternatives to closure sufficient to protect the interests favoring closure.

*Id.*

The Court is asked again to engage in the balancing of competing interests. On the one hand, the public's qualified right of access; on the other, Mr. Robinson's unqualified rights to a fair trial and to a reliable penalty phase. *See State v. Archuleta*, 857 P.2d 234, 237 (Utah 1993) (“Even if a qualified right of access to a criminal proceeding or judicial records does exist, that right is not absolute.”). *See also* U.S. Const. VI, VIII; Utah Const. art. I, §§ 9, 12.

Mr. Robinson acknowledges that this Court has declined to maintain as private certain documents filed by the parties and portions of hearings and the subsequent transcripts, even where the parties have stipulated to that classification and News Media representatives have not lodged an objection. However, in the weighing of competing interests, Mr. Robinson's unqualified rights must prevail and accordingly the underlying motion to exclude cameras and attached exhibits must be classified as private. *See Supernova Media, Inc. v. Pia Anderson Dorius Reynard & Moss, LLC*, 2013 UT 7, ¶ 58, 297 P.3d 599 (court has discretion to seal documents if right of access is outweighed by competing interests; "Competing interests include protecting the integrity of ongoing investigations and proceedings, the privacy of those involved, . . . the defendant's right to a fair trial" (quoting Utah Code J. Admin. R. 4-202(2))).

### CONCLUSION

The *de minimis* limitation on public access arising from maintaining the motion to exclude as private is overwhelmingly outweighed by the Court's obligation to protect Mr. Robinson's right to a fair trial as well as the integrity of the judicial proceedings.

RESPECTFULLY SUBMITTED this 6th day of February, 2026.

/s/ Kathryn N. Nester  
Kathryn N. Nester

/s/Richard G. Novak  
Richard G. Novak

/s/ Michael N. Burt  
Michael N. Burt

/s/ Staci Visser  
Staci Visser

*Attorneys for Defendant, Tyler James Robinson*

### **CERTIFICATE OF SERVICE**

This is to certify that a true and correct copy of the foregoing was served via the Court's electronic filing system on the 6th day of February, 2026, which served all attorneys of record.

/s/ Staci Visser